

(S E R V E D)
(JANUARY 10, 1995)
(FEDERAL MARITIME COMMISSION)

FEDERAL MARITIME COMMISSION

WASHINGTON, D. C.

January 10, 1995

DOCKET NO. 89-26

THE GOVERNMENT OF THE TERRITORY OF GUAM, ET AL.

v.

**SEA-LAND SERVICE, INC. AND
AMERICAN PRESIDENT LINES, LTD.**

MOTION GRANTED FOR AN EXTENSION OF BRIEFING SCHEDULE

Complainants and respondents filed proposed findings and opening briefs on December 5, 1994 after a four-week extension of time granted on October 5, 1994. Complainants state that the filings cumulatively numbered more than 2,000 pages.¹

Complainants state that given the extraordinary length of each party's submissions, the complexity of the issues, and the variations in the arguments between the two carriers

¹APL's submission was more than 1,007 pages, Sea-Land's more than 282 pages, complainants' financial submission was more than 335 pages, complainants' submission regarding Sea-Land's West Coast to Guam and Hawaii to Guam service was more than 147 pages in length, and the Military Sealift Command submission was 51 pages long.

and between the carriers and complainants, an extension this time of 45 days for the submission of reply briefs is necessary. Respondents state that they do not object to such an extension so long as the period for filing surreply briefs is expanded from 15 days at present to 45 days. Respondents state that given the very large scale of the reply brief that complainants have indicated they anticipate filing, they believe that an informed analysis and response to that reply could not be accomplished in less than 45 days. Respondents further state that their purpose in filing a reply to complainants' motion is to make the following statement, which they previously informed complainants' counsel they would make:

Respondents consider that complainants' opening brief failed to address certain legal and factual matters that should properly have been addressed in the opening brief if they were to be addressed by complainants at all. Respondents intend to elaborate on this position in their reply briefs. Respondents' non-objection to an extension of the briefing schedule is without prejudice to their right to assert this (or any other) position in their reply and surreply briefs.

Complainants state that they do not oppose expanding the time for filing surreplies, and that the Military Sealift Command does not oppose either extension. In the circumstances of this proceeding the requests will be granted.

It is ordered:

The briefing schedule of June 17, 1994, as modified on October 5, 1994, is further modified as follows:

- (1) The date for filing reply briefs is changed from February 6, 1995 to March 23, 1995 and

(2) The date for filing surreply briefs is changed from February 21, 1995 to May 8, 1995.


Frederick M. Dolan, Jr.
Administrative Law Judge